



Proposal for a New Value Delivery Model



Outline

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-
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Current State

- The value delivered by the ABA is difficult to identify and measure.
- Business case for justifying legal investments is challenging to create without hard metrics around cost reduction, cycle time reduction, and value enablement.
- The ABA resources are inconsistently positioned to influence the planning, investment, and execution around change.
- Organizations do not know how best to use legal resources to mitigate risk and/or enable value for their customers and stakeholders.
- Practitioners (lawyers) do not have a consistent way to assess the impact of their contributions (short term and long term).

Objectives

- Create a reference model for defining the legal jobs from which duties, practices, and value are derived.
- Build a repository of metrics that the ABA can use to measure the value that practitioners deliver to customers (governance).
- Map the value metrics against the services (practices & methodologies) and products (tools & deliverables) used to deliver value to customers.
- Identify opportunities (gaps between what is delivered versus what customers want) to improve services & products.
- Identify products & services that the ABA can deliver to help:
 - Practitioners (lawyers) optimize their value delivery
 - Stakeholders leverage practitioners to optimize their value delivery

Benefits

- Practice:
 - The practitioners (lawyers) will be able to justify the value of their services by creating measureable lineage from products & services to addressing customer needs.
- Profession:
 - The ABA will be able to align the value gaps with its roadmap to ensure the practices, certification, education, and governance support the unmet customer needs for the products & services delivered by the practitioners (lawyers).
- Public:
 - Enterprises will be able to understand the need, value, and positioning for the ABA to augment their own value delivery of products and services.

Program Charter

Program Charter			
Developing a Legal Value Model			
Project Number	ABA – 103	Charter Date	October 1 st , 2009
Program Sponsor	ABA BOD BOT	Program Director	TBD
Program Scope	<i>Design and implement a customer focus framework for capturing and modeling metrics used to model the outcomes for customers and a set of metrics for which to benchmark the products & services delivered by legal practitioners.</i>		
Objectives	▪ Implement a customer focus methodology ▪ Create a reference model for identifying customer outcomes and metrics for measuring value ▪ Define a complete list of jobs performed by a lawyer ▪ Create a repository of customer outcomes & value metrics ▪ Develop a process to prioritize and align the outcomes & metrics with GAPS in ABA practices ▪ Institutionalize the customer focus methodology within ABA ▪ Develop a licensing program to promote the usage of Legal Value metrics & drive revenue for the ABA		
Governance	▪ Establish a steering committee with members from the BOD ▪ Create a small team of dedicated trained resources to staff each project ▪ Project lead will be the Program Director ▪ Steering Committee will approve scope, program objectives, and project deliverables ▪ (Note: Each project represents 1 job that will be studied to capture the legal outcomes & value metrics)		

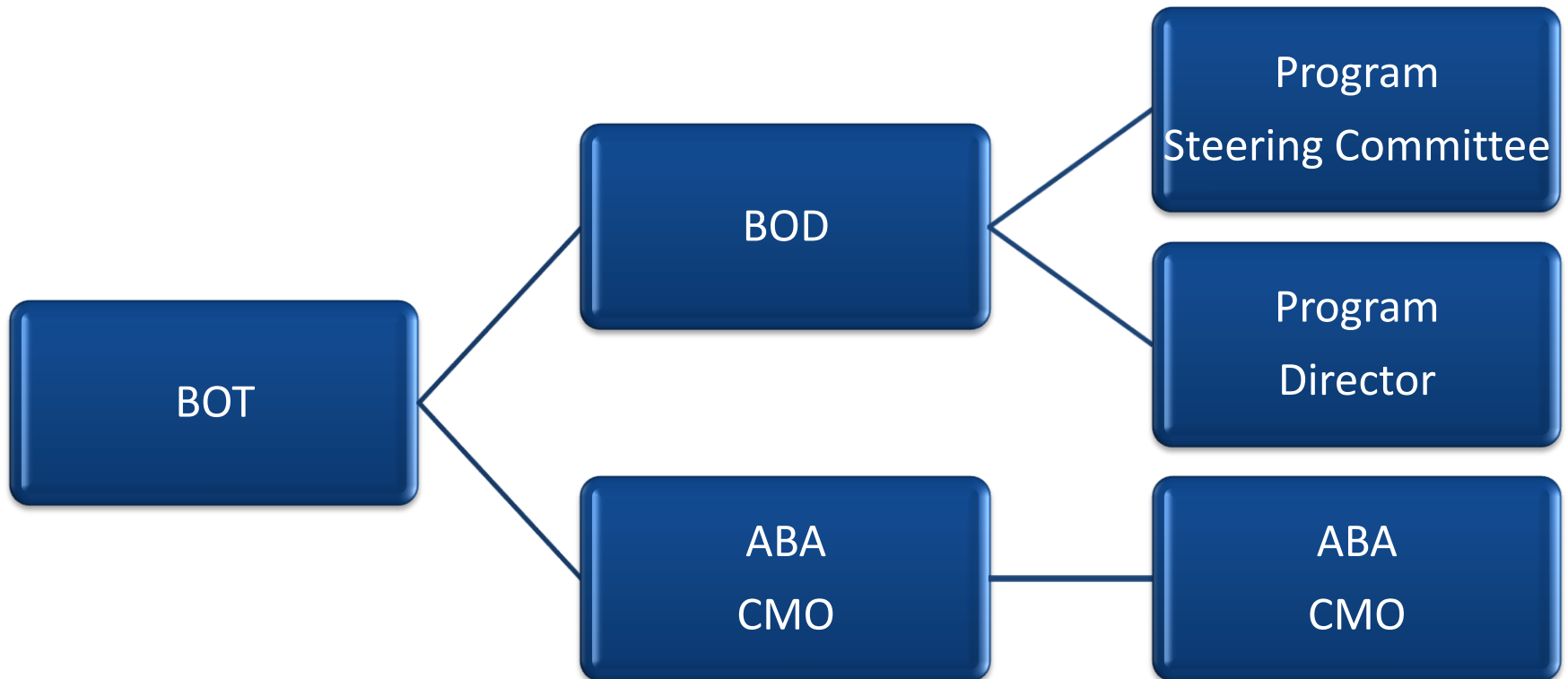
Program Roadmap

- Q4 2009
 - Draft the proposal for the work stream
 - Obtain approval from ABA leadership
 - Build a steering committee for the program
 - Secure funding for the first project
- Q1 2010
 - Continue securing funding for the project
 - Draft resources for the project team
 - Finalize project schedule
 - Begin work on initial deliverables

Program Roadmap

- Q2 2010
 - Complete qualitative study for Project 1
 - Complete quantitative study for Project 1
 - Conduct analysis of Project 1 results
- Q3 2010
 - Present Project 1 results to ABA leadership
 - Publish results for Project 1 to Public
 - Capture feedback and gauge response
 - Review program with Steering Committee for next steps
 - Secure funding for additional projects per program
- Q4 2010
 - Move forward with next project(s)

Program Governance



Staffing Plan

- Steering Committee
 - Jeff Wallk
 - Mark Lane
 - Greg Black
 - Marc Paradis
 - Mark Sternberger
- Project Team
 - Jeff Wallk (commitment of 10 hours / week)
 - Volunteer 1 (commitment of 6 hours / week)
 - Volunteer 2 (commitment of 4 hours / week)

**The Value Enablement
Group LLC**
A Global Strategic Firm

Project 1

(Overview)

Key Milestones & Deliverables

- Qualitative Phase:
 - Job Study for Project Scope
 - Prioritize the jobs to study
 - Develop an interview plan
 - Conduct interviews (capture outcomes)
 - Analyze outcomes & complete analysis
- Quantitative Phase:
 - Draft survey (using outcomes)
 - Conduct survey (measure outcomes)
 - Analyze results & identify opportunities
- Present findings to Board of Directors (BOD)

**Based on the
Strategyn
Methodology
(see appendix)**

Key Milestones & Deliverables

- Establishing the opportunity pipeline
 - Prioritize the list of opportunities
 - Introduce tools for generating ideas (to address opportunities)
 - Conduct an open innovation competition (to generate ideas)
 - Steering Committee to select the best ideas
 - Provide recognition to contestants
 - Select the best ideas & agree upon list of recommendations to pursue
 - Present top ideas to ABA Board with recommendations
- Transition ideas to innovation
 - Gain board approval to pursue recommendations
 - Board assigns ownership to develop & implement changes
 - Create new products & services
 - Modify existing products & services

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Appendix

(Overview of Strategyn Methodology)

What is a Job ?

- **A job...**

- Defines **the high-level goal** the customer is trying to accomplish **or problem** they are trying to resolve
- Defines **an action, application or process** for which one or more products or services are presently being hired or may be needed

Job Illustrations

- Participate in services
- Perform a mitzvah service
- Purchase a product or service
- Obtain counseling
- Obtain education
- Performing surgery
- Share knowledge
- Printing a document
- Study Torah



What are outcomes ?

- Customers intrinsically use “metrics” to define the successful execution of a specific job
- These metrics (or desired outcomes) ARE the customer’s needs
- If a desired outcome is both important and unsatisfied, it is unmet
- The more important and less satisfied an outcome is (the more unmet it is) the greater it represents an opportunity for value creation
- ... customers may not be able to articulate a solution, but they can certainly articulate what outcomes they want to achieve

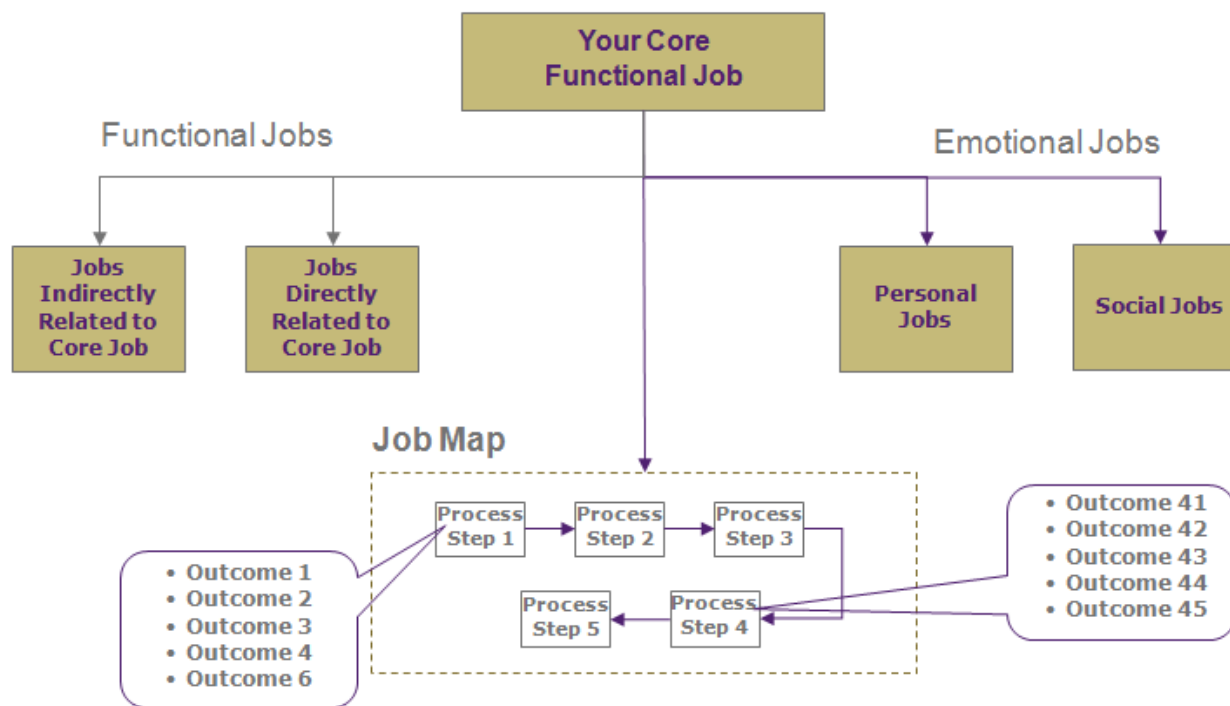


Customers couldn’t articulate their “need” for a microwave oven, but they did know they wanted to:

- Minimize the time it takes to prepare a meal
- Minimize the time it takes to clean up after cooking
- Minimize the likelihood of overcooking a meal
- Increase the likelihood that the food is cooked evenly throughout

Model for Relating Jobs & Outcomes

Job Executor:



Desired outcomes are the metrics customers use to measure the successful execution of a job.

Capturing & Measuring Value

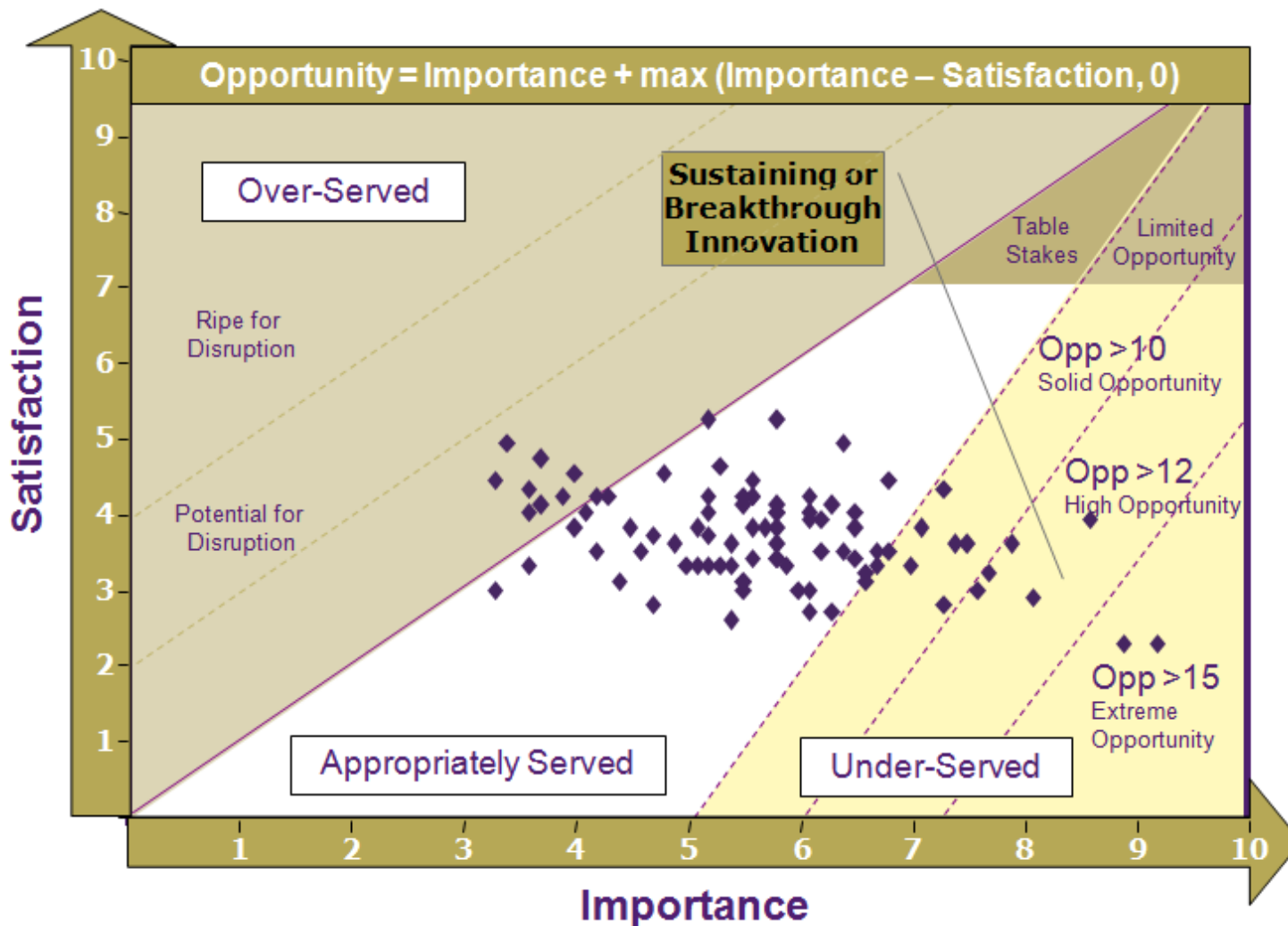
Administer a survey (web, phone) to a significant population

How <u>important</u> is it that you are able to....?	Not Important At All	Somewhat Important	Important	Very Important	Extremely Important
Increase the percent of plants that emerge at the same time	☐ ₁	☐ ₂	☐ ₃	☐ ₄	☐ ₅
Minimize the time it takes the plant to absorb nutrients once they are planted	☐ ₁	☐ ₂	☐ ₃	☐ ₄	☐ ₅

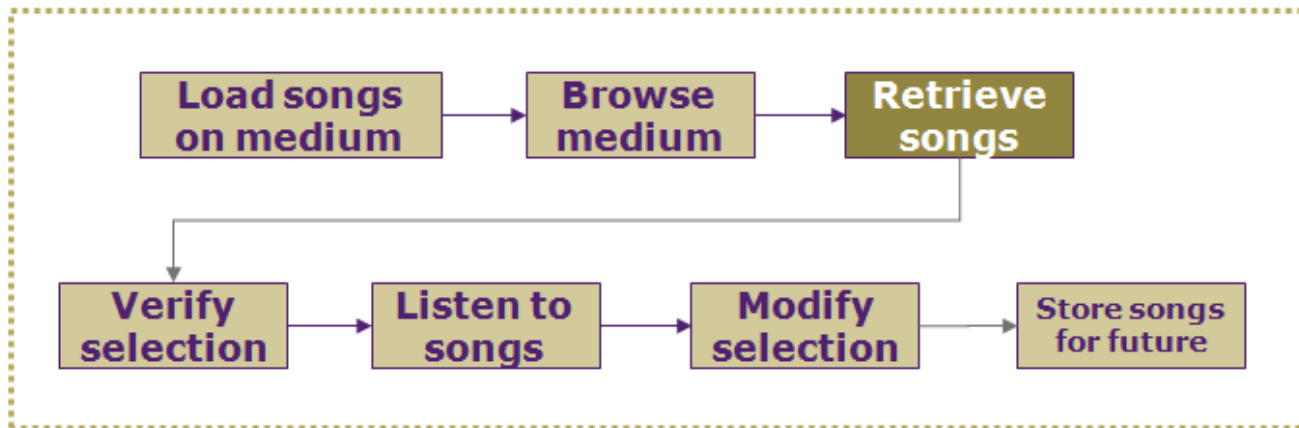
How <u>satisfied</u> are you with your ability to....?	Not Satisfied At All	Somewhat Satisfied	Satisfied	Very Satisfied	Extremely Satisfied
Increase the percent of plants that emerge at the same time	☐ ₁	☐ ₂	☐ ₃	☐ ₄	☐ ₅
Minimize the time it takes the plant to absorb nutrients once they are planted	☐ ₁	☐ ₂	☐ ₃	☐ ₄	☐ ₅

$$\text{Opportunity} = \text{Importance} + \max (\text{Importance} - \text{Satisfaction}, 0)$$

Identifying & Prioritizing Opportunities



Example: Job of Storing & Retrieving Music



Outcomes

- Increase the number of songs that are available for selection
- Minimize the time it takes to locate a song when critical information is missing, e.g., the name of the song, the artist, etc.
- Minimize the likelihood of inadvertently selecting the wrong song
- Minimize the time it takes to queue the songs in the order in which they are to be played
- Minimize the time it takes to remove a song from the queue

Thank You

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